

HEADNOTE

“1. When deciding on a request to change the language of the proceedings to the language in which the patent was granted, all relevant circumstances relating to the case and to the position of the parties shall be taken into account. If the outcome of balancing of interests is equal , here both parties being international companies operating worldwide , the position of the defendant is the decisive factor.”

COURT
Local Division in Hamburg

PROCEEDINGS
Infringement action

PATENT
EP 2196231

System for ambulatory drug infusion
comprising a filling apparatus for
flexible containers

KEYWORDS

Change of the language of the proceedings

SUMMARY

The Local Division in Hamburg ruled on an infringement action. The patent at issue relates to a system for ambulatory drug infusion comprising a filling apparatus for flexible containers. According to the headnotes of the decision, the court must consider all relevant circumstances when deciding on language changes. The position of each party must also be taken into account. If the interests of both parties are equally balanced, the defendant's position becomes decisive. This principle applies even when both parties are international companies operating worldwide.